

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF TSENTR PROSVETITELNYKH I ISSLEDOVATELSKIKH PROGRAMM v. RUSSIA

(Application no. 61214/08)

JUDGMENT

STRASBOURG

14 December 2021

This judgment is final but it may be subject to editorial revision.



In the case of Tsentr Prosvetitelnykh i Issledovatelskikh Programm v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

María Elósegui, *President,*
Darian Pavli,
Frédéric Krenc, *judges,*
and Olga Chernishova, *Deputy Section Registrar,*

Having regard to:

the application (no. 61214/08) against the Russian Federation lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 13 November 2008 by Tsentr Prosvetitelnykh i Issledovatelskikh Programm, a public association based in St Petersburg ("the applicant"), which was represented by Mr D.G. Bartenev and Ms M.A. Kanevskaya, lawyers practising in St Petersburg;

the decision to give notice of the application to the Russian Government ("the Government"), represented by Mr G. Matyushkin, the then Representative of the Russian Federation to the European Court of Human Rights, and lately by Mr M. Vinogradov, his successor in that office;

the parties' observations;

the decision to reject the Government's objection to examination of the application by a Committee;

Having deliberated in private on 23 November 2021,

Delivers the following judgment, which was adopted on that date:

SUBJECT-MATTER OF THE CASE

1. The case concerns the dissolution of a public association. The applicant is a legal person in the form of a regional public organisation registered in St Petersburg on 28 June 2002, now dissolved. The application was lodged by its chairman Ms Lyubov Nikolayevna Kazankova. According to its founding charter, its aims were to disseminate information about human rights and to promote legal awareness through charitable work, legal assistance, public events, publications, research and other activities. The applicant conducted seminars on topics relating to international law, human rights, project management and the regulation of NGO activities.

2. From 2 until 31 July 2007 the Federal State Registry Service conducted an inspection of the applicant's activities in 2004-2007 and found that it had committed various breaches of the law. On this basis it lodged an application with the St Petersburg City Court for the applicant's dissolution.

3. On 14 February 2008 the St Petersburg City Court ordered the applicant's dissolution on the following grounds. Firstly, it found that the

applicant had carried out some activities outside St Petersburg, contrary to its status as a regional public organisation. In particular, during the period from November 2006 to February 2007 it had organised four seminars in the nearby regions (in the North-Western Federal Circuit of Russia). Secondly, the applicant had been conducting educational activities without holding the relevant licence. In particular, its seminars had involved training and role-playing games designed to provide the participants with theoretical knowledge and practical skills that could be applicable to professional activities; moreover, it had issued questionnaires, feedback forms and certificates of attendance. Such seminars had been found to constitute "educational activities" which were subject to licencing. It was concluded that the applicant had been using its funds for purposes other than those indicated in its founding charter. The applicant's arguments that its activities, which had been of general utility, had not caused any harm to the State, or society, or any persons, and that its dissolution would constitute an unjustified interference with its rights under Articles 10 and 11 of the Convention, had been dismissed as untenable. According to the court's interpretation of the relevant domestic law, an organisation could be dissolved regardless of whether or not its activities had caused any harm.

4. The applicant appealed, arguing that the domestic law did not prohibit the activities of a public association outside the region of its registration, and did not require a licence for the seminars at issue (one-time events without the final attestation and award of diplomas of qualification). It also relied on the Constitutional Court's judgment no. 14-P of 18 July 2003 (see *Biblical Centre of the Chuvash Republic v. Russia*, no. 33203/08, § 38, 12 June 2014) and a similar judgment delivered by the Supreme Court of the Russian Federation on 4 March 2008, in which it dismissed an appeal lodged by the Federal State Registry Service against the Samara Regional Court's judgment of 21 December 2007, holding that the dissolution of a public organisation could not be effected solely on the formal grounds of breaches of the law, and that the liability had to be, *inter alia*, proportionate to the committed violations and their consequences.

5. On 20 May 2008 the Supreme Court of the Russian Federation upheld the first-instance judgment, and the applicant ceased to carry out its activities. On 13 January 2009 the same court refused the applicant's request for supervisory review.

6. The applicant complained under Articles 10 and 11 of the Convention that its dissolution had not been prescribed by domestic law and, in any case, had not been necessary in a democratic society. The Government disagreed, relying on the domestic courts' findings in the applicant's case.

THE COURT'S ASSESSMENT

ALLEGED VIOLATION OF ARTICLES 10 AND 11 OF THE CONVENTION

7. The Court notes that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention or inadmissible on any other grounds. It must therefore be declared admissible.

8. Being master of the characterisation to be given in law to the facts of the case, the Court considers that the complaint falls to be considered under Article 11 of the Convention. The general principles applicable in the present case have been summarised most recently in *Adana TAYAD v. Turkey*, no. 59835/10, §§ 27-28, 21 July 2020, and *Croatian Golf Federation v. Croatia*, no. 66994/14, §§ 85-98, 17 December 2020, with further references.

9. The applicant organisation's dissolution constituted an interference with its right to freedom of association. Even assuming that it was a lawful measure taken for achieving one or more of the legitimate aims set out in Article 8 § 2, it cannot be considered "proportionate to the legitimate aims pursued". The authorities applied such harsh and particularly far-reaching measure without offering the applicant any possibility to comply with the relevant legal requirements, failing to show that there were no other means of achieving the same aims that would interfere less seriously with the freedom of association. They refused to consider the existence and extent of any harm caused by the breaches of the law. Their decision-making did not include an analysis of the impact of the dissolution on the rights of its members. Nor did they take into account the importance of its activities "in a democratic society". The higher court did not give any reasons for its failure to follow the Constitutional Court's binding interpretation of the relevant legal provisions issued as early as 2003, or to differentiate with its own judgment in a similar case, despite the applicant's arguments (see paragraph 4 above). In sum, the authorities failed to carry out a balancing exercise conforming with the criteria laid down in the Court's case-law under Article 11 of the Convention, being mindful that the way in which national legislation enshrines freedom of association and its practical application by the authorities reveal the state of democracy in the country concerned, and of the direct relationship that exists between democracy, pluralism and freedom of association.

10. The Court considers that the reasons invoked by the authorities for the dissolution of the applicant organisation were not determined by any "pressing social need", nor were they "convincing and compelling" to justify it. That being so, the interference cannot be deemed necessary in a democratic society.

11. There has accordingly been a violation of Article 11 of the Convention.

APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. The applicant claimed 3,000 euros (EUR) in respect of non-pecuniary damage and 160,000 Russian roubles and EUR 1,440 in respect of costs and expenses incurred before the Court. It requested that the latter amount be paid directly to the representative's bank account.

13. The Government submitted that the claim was unfounded and that no compensation should be paid in this case involving no violation of the Convention.

14. The Court awards the applicant the amount claimed in respect of non-pecuniary damage, plus any tax that may be chargeable.

15. Having regard to the documents in its possession, the Court considers it reasonable to award EUR 4,000 for costs and expenses in the proceedings before the Court, of which EUR 1,440 should be paid into the bank account of the applicant's representative Mr D.G. Bartenev as requested by the applicant, plus any tax that may be chargeable to the applicant.

16. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Declares* the application admissible;

2. *Holds* that there has been a violation of Article 11 of the Convention;

3. *Holds*
   (a) that the respondent State is to pay the applicant, within three months, the following amounts, to be converted into the currency of the respondent State at the rate applicable at the date of settlement:
      (i) EUR 3,000 (three thousand euros), plus any tax that may be chargeable, in respect of non-pecuniary damage;
      (ii) EUR 2,560 (two thousand five hundred and sixty euros), plus any tax that may be chargeable to the applicant, in respect of costs and expenses;
      (iii) EUR 1,440 (one thousand four hundred and forty euros), plus any tax that may be chargeable to the applicant, in respect of costs and expenses, to be paid into the bank account of the applicant's representative Mr D.G. Bartenev;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amount at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 December 2021, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Olga Chernishova	María Elósegui
Deputy Registrar	President